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CITY OF CAMBRIDGE, MASSACHUSETTS
IN CITY COUNCIL

ORDINANCE NO. 2026-17

AN ORDINANCE AMENDING THE CAMBRIDGE MUNICIPAL CODE BY ADDING A NEW CHAPTER 8.72,
"PROHIBITION ON ALGORITHMIC RENT-SETTING SOFTWARE"

Be it ordained by the City Council of the City of Cambridge that the Cambridge Municipal Code is hereby amended by adding the following new Chapter 8.72:

Chapter 8.72 PROHIBITION ON ALGORITHMIC RENT-SETTING SOFTWARE

8.72.010 Purpose.

The City Council finds that software which pools nonpublic rental data of competing landlords to recommend rents can raise rents above competitive levels. The purpose of this Chapter is to protect tenants in the City of Cambridge from such coordinated pricing.

8.72.020 Definitions.

For the purposes of this Chapter, the following words shall have the following meanings:

"Algorithmic rent-setting software" means any software, program, or service that uses nonpublic data of two or more landlords concerning rents, occupancy, or lease terms to recommend, set, or adjust the rent or occupancy level of a residential rental unit.

"Covered building" means any building in the City containing six or more residential rental units.

"Landlord" means an owner, lessor, or sublessor of a residential rental unit, and any agent acting on the owner's behalf.

8.72.030 Prohibition.

(a) No landlord shall use algorithmic rent-setting software to set, recommend, or adjust the rent or occupancy level of any residential rental unit in a covered building.

(b) No person shall sell, license, or otherwise provide algorithmic rent-setting software to a landlord for use in setting rents for residential rental units located in the City.

8.72.040 Exemptions.

This Chapter shall not apply to buildings containing fewer than six residential rental units, or to units owned or operated by the Cambridge Housing Authority.

8.72.050 Penalties.

Any person who violates this Chapter shall be subject to a civil fine of up to \$1,000 per violation. Each month a violation continues, and each residential rental unit affected, shall constitute a separate violation. An aggrieved tenant may bring a civil action for injunctive relief and damages.

8.72.060 Effective date.

This ordinance shall take effect one hundred eighty (180) days after its adoption.

Adopted by the City Council of the City of Cambridge on September 14, 2026.

A true copy;

ATTEST: City Clerk